

		Therefore, given the liberal policy of favoring a determination on the merits, the court will grant the motion to set aside. However, the proposed answer attached to the Declaration of Hung Nguyen is riddled with typographical errors and nonsensical sentences and paragraphs. Therefore, the court will order that Defendant Hung Nguyen review and amend the proposed answer and file the proposed answer only after it is modified to be compliant with the Civil Procedure Code and California Rules of Court. Defendant Hung Nguyen shall give notice of this ruling.
6	Perez vs. General Motors, LLC 30-2024-01425638	<u>Motion to Strike and/or Tax Costs</u> Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs is DENIED. Plaintiffs Arturo Perez and Maria Torres are ORDERED to file and serve and Amended Memorandum of Costs that includes the actual cost of a court reporter for the hearing on this motion. <u>Pending Motion</u> Defendant General Motors LLC moves to tax \$1,073.68 of the \$1,609.88 costs contained in Plaintiffs Arturo Perez's and Maria Torres' Memorandum of Costs. <u>Standard to Strike and/or Tax Costs</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606.) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, § 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does

		not have discretion to award a cost item that is not statutorily authorized. (<i>Ladas v. California State Auto. Ass'n</i> (1993) 19 Cal.App.4th 761, 774.) In addition, the Song-Beverly Act states that "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d.)) To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) However, once an item is shown to be not reasonable or necessary, it is put in issue and the burden of proof shifts to the party claiming the cost. (<i>Ibid.</i>) This burden is met by providing sufficient detail as to the reasonableness of the costs incurred. (See <i>Thon v. Thompson</i> (1994) 29 Cal.App.4th 1546, 1548-1549.) Here, Defendant contends that the following costs requested by Plaintiffs are without merit, unreasonable, unsupported, and/or unnecessary: Filing fees: Defendant seeks to tax/strike \$180.00 in filing fees related to discovery motions as unnecessary;
--	--	--

		• Jury fees: Defendant seeks to tax/strike \$150 in jury fees because the case never went to trial and was settled; • Court reporter fees: Defendant seeks to strike/tax \$550 in court reporter fees given that Plaintiff failed to provide any documentary evidence to substantiate these costs; and • Electronic filing fees: Defendant seeks to strike/tax \$193.69 in filing fees as being unsubstantiated. Defendant cites to Section 1033.5 to support its arguments and asserts that the costs are not recoverable because they were not reasonably necessary for the conduct of litigation. However, Defendant fails to address the fact that Plaintiffs may also rely on Section 1794, which is broader and more expansive than section 1033.5. The court has reviewed the disputed costs and finds that the filing fees, jury fees, and electronic filing fees to which Defendant objects are reasonable and awardable under Section 1794 and/or Section 1033.5. With respect to the court reporter fees, Plaintiffs contend that this is the anticipated expense that Plaintiffs will incur for the September 21, 2026 hearing on the motion for attorney's fees. While Plaintiffs may recover the costs of a court reporter for a necessary hearing, the actual amount of these costs cannot be determined at this time. Therefore, the court will deny the motion as it relates to the filing fees, jury fees, and filing fees, and grant the motion as it relates to the court reporter fees. However, Plaintiffs may amend the memorandum of costs to add court reporter fees once those costs actually are incurred. Plaintiffs shall give notice of this ruling.
7	ODK Capital, LLC vs. The Tradesman Electric, Inc. 30-2025-01487373	<u>Motion to Set Aside</u> Defendant Thomas Sheltraw's Motion to Set Aside Default is GRANTED.